National Credit Regulator

Please send completed application form to: 127 - 15th Road, Randjespark, Midrand | PO Box 209, Halfway House, 1685

COMPLAINT INITIATION FORM
(Initiating a complaint to the National Credit Regulator in terms of Section 136 of the Act)

General information

1. A complainant that wishes to submit a complaint must complete this form in full. For help in filing in this form, please phone the National Credit Regulator (0860 627 627)
2. If you are a third party, completing this form on behalf of an individual, kindly refer to the regulations for details on the documentation that should accompany this form. (Regulation 50)
3. The complaint form and the documentation must be submitted to the National Credit Regulator

Complaint Initiation Form

1. Name of Complainant: Johannes Andries le Roux
2. ID/CIPRO reg. No.: 8 9 0 1 2 1 5 1 4 7 0 8 4
3. Date: 3 November 2026
4. Physical Address: 40 Strubens Road
   Mowbray
   Cape Town, Western Cape Postal Code: 7700

   Postal Address: 40 Strubens Road
   Mowbray
   Cape Town, Western Cape Postal Code: 7700
5. Telephone number: 060 961 5091 Fax number:

   5.1 Institution to which the complaint relates: DebtBusters (Intelligent Debt Management)

   5.2 Branch (if relevant): 4th Floor, Mutual Park, Jan Smuts Drive, Pinelands, Cape Town 7405

   5.3 Person representing institution: Saul Allardice, debt counsellor NCRDC4172
6. Short description of complaint. Add pages if required: See attached Additional Complaint Form and covering letter.
7. I confirm that I want the National Credit Regulator to consider my complaint.
8. I understand that:
   - The National Credit Regulator will handle my complaint according to the requirements of the National Credit Act, 2005.
   - Confidential information may be considered by the National Credit Regualtor in the process of handling my complaint.
   - The National Credit Regulator my need to communicate with other organisations in respect of the complaint question and may need to exchange information in this regard.
9. Should the National Credit Regulator require me to issue a statement under oath in respect of information contained in this form, I will do so.

Date: 3 November 2026 Place: Cape Town

Complainant's signature:

(Complainant or person duly authorised to act on the complainant's behalf - power of attorney complying with Regulation 50 must be enclosed)

Signature of call centre operator in the event of the complaint being intitiated by a telephone call.

Name of call centre operator: Signature:

National Credit Regulator

Additional Complaint Form

Completion of this form is not mandatory however a detailed complaint is required, as guided below.

What is your name and surname? Johannes Andries le Roux

In which province are you currently living? Western Cape

What is your email address? leroux.johannes@gmail.com

What is your home language? English / Afrikaans

How would you like us to contact you? Email ■ **Telephone** □ **Sms** □ **Post** □

Detailed description of complaint (be as detailed as you possibly can and stipulate specific dates

I applied for debt review with DebtBusters (debt counsellor Saul Allardice, NCRDC4172) on 1 Feb 2026 and pay R17,000 a month through the PDA. Nine months later there is no court order and my credit providers still charge full contractual interest. 9 Apr 2026: DebtBusters said negotiations were complete and a summary was attached; nothing was attached. 23 Jun 2026: I was told none of my FNB accounts were accepted. My portal balance rose from about R745,000 to R1,240,177. 13 Jul 2026: I asked in writing for the summary, the acceptances, the court status and a reconciliation; I followed up on 27 Jul, 3 Aug, 11 Aug and 28 Aug, and the only reply (31 Aug) said it had been referred to legal. 3 Aug: I was asked for my antenuptial contract a day before the hearing and sent it within 13 minutes. 4 Aug: the hearing was postponed; the Magistrate wanted updated proof of income and residence and a supplementary affidavit on my income. I was only asked for these on 4 and 8 Sep; I sent the documents on 7 Sep and the affidavit on 22 Oct. 9 Sep: the savings sheet was sent for the first time, five months late. 10 Sep: I showed that two FNB accounts were captured at about a tenth of their balances: FNB Credit Card R22,339.91 against R242,993 on the portal (R244,951 on my credit report); FNB Residual ...081 R27,042.34 against R293,580. The offers of R650 and R750 a month do not cover the interest, which is likely why FNB rejected the proposal. DebtBusters said it had contacted FNB; nothing since. 26 Oct: the hearing (case 4652/2026, Wynberg) was postponed to 20 Jan 2027 because, in the attorneys' words (3 Nov 2026), 'DebtBusters was unable to provide our offices with definitive instructions'. The application appears to rest on incorrect balances. Full details are in the attached covering letter.

Advise of steps you have taken to try and resolve this matter (include dates where you can)

Written queries and follow-ups to DebtBusters (csu@debtbusters.co.za) on 13 Jul, 27 Jul, 3 Aug, 11 Aug, 28 Aug, 31 Aug, 10 Sep, 14 Sep, 22 Oct, 2 Nov and 3 Nov 2026. Escalated in writing to team leader Saadiqah Loubscher and to the Executive Head, Benay Sager, on 3 Nov 2026. Correspondence with the attorneys of record (VHT Attorneys) from 3 Aug to 3 Nov 2026. I have supplied every document requested of me.

List attached supporting documents relevant to this matter

1. DebtBusters savings sheet ('End of negotiations'), received 9 Sep 2026
2. DebtBusters portal balance screenshots, 10 Sep 2026
3. Notice of Motion, case 4652/2026 (Wynberg Magistrate's Court)
4. Credit bureau report extract (FNB credit card)
5. Emails with DebtBusters and VHT (Apr to Nov 2026), incl. VHT letter of 3 Nov

Advise what outcome you would like to receive

1. Investigate the debt counsellor's conduct. 2. Require, within a set time: certificates of balance for every account (Jan 2026 and today), a full payment and distribution statement, confirmation of the FNB capture error and a corrected proposal. 3. Ensure the application is corrected and ready to be finalised on 20 Jan 2027. 4. A named, accountable contact person. 5. Redress for losses caused by the delays, including a refund or waiver of fees for the delay period.

The NCR will provide you with details of the outcome of our assessment and in the event of such outcome indicating the lack of a reasonable suspicion of prohibited conduct, you may request the NCR to issue a Notice of Non-Referral in terms of section 139(1) to enable you to refer the matter directly to a consumer court or the Tribunal as contemplated in section 141 of the National Credit Act 34 of 2005.

You are also at this stage already advised of the contents of section 166 of the National Credit Act which provides for a limitation in bringing an action in that a complaint may not be referred or made to the Tribunal or to a consumer court more than three years after the act or omission that is the cause of the complaint or in the case of a course of conduct or continuing practice, the date that the conduct or practice ceased.

Disclaimer

By attaching your signature on the Form 29, you are confirming that you understand the following:

- *The National Credit Regulator will handle your complaint according to the requirements of the National Credit Act, 2005.*
- *Confidential information may be considered by the National Credit Regulator in the process of handling your complaint.*
- *The NCR may need to communicate with other organizations in respect of the complaint in question and may need to exchange information in this regard.*